

## **S5 Drugs And Magic Remedies Act**

### **Title: Definition of Magic Remedy**

Jurisdiction: India

Category: Advertising

Source Citation: Drugs and Magic Remedies (Objectionable Advertisements) Act, 1954, Section 2(c)

#### **Plain English Summary:**

A magic remedy includes a talisman, mantra, kavacha, or any object claimed to possess miraculous powers for diagnosing, curing, mitigating, treating, or preventing diseases. Ayurvedic businesses must not advertise magical or supernatural claims about their products or services.

#### **The Exact Legal Text:**

“magic remedy” includes a talisman, mantra, kavacha and any other charm of any kind which is alleged to possess miraculous powers for or in the diagnosis, cure, mitigation, treatment or prevention of any disease in human beings or animals, or for affecting or influencing in any way the structure or any organic function of the body of human beings or animals;

#### **Keywords/Triggers:**

magic remedy, miraculous cure, talisman, mantra, kavacha, supernatural claim, magical treatment, disease cure claim

### **Title: Prohibition of Advertisements for Certain Diseases and Disorders**

Jurisdiction: India

Category: Advertising

Source Citation: Drugs and Magic Remedies (Objectionable Advertisements) Act, 1954, Section 3

#### **Plain English Summary:**

The Act prohibits advertisements claiming that a drug can be used for the diagnosis, cure, mitigation, treatment, or prevention of specified diseases and disorders. An Ayurvedic startup must not promote its product as a guaranteed treatment or cure for diseases listed under the Act. Claims must be reviewed carefully before being used in advertisements.

#### **The Exact Legal Text:**

Subject to the provisions of this Act, no person shall take part in the publication of an

advertisement referring to any drug in terms which suggest or are calculated to lead to the use of that drug for—

- (a) the procurement of miscarriage in women or prevention of conception in women; or
- (b) the maintenance or improvement of the capacity of human beings for sexual pleasure; or
- (c) the correction of menstrual disorders in women; or
- (d) the diagnosis, cure, mitigation, treatment or prevention of any disease, disorder or condition specified in the Schedule.

Keywords/Triggers:

prohibited drug advertisement, disease treatment claim, miscarriage claim, conception prevention, sexual pleasure claim, menstrual disorder, scheduled disease

### **Title: Prohibition of Misleading Advertisements**

Jurisdiction: India

Category: Advertising

Source Citation: Drugs and Magic Remedies (Objectionable Advertisements) Act, 1954, Section 4

Plain English Summary:

A drug advertisement must not contain false or misleading claims about the true nature of the drug. It must not make false claims about its usefulness or give a false impression regarding the drug. Ayurvedic product advertisements should be accurate, supported by evidence, and free from exaggerated promises.

The Exact Legal Text:

Subject to the provisions of this Act, no person shall take part in the publication of an advertisement relating to a drug if the advertisement contains any matter which—

- (a) directly or indirectly gives a false impression regarding the true character of the drug; or
- (b) makes a false claim for the drug; or
- (c) is otherwise false or misleading in any material particular.

Keywords/Triggers:

misleading advertisement, false claim, exaggerated claim, drug usefulness, product representation, advertising accuracy, evidence-based claim

